

12. Powers and Procedure of Amendment in Indian Constitutional

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12.1 Introduction

- A constitution must be able to change with society and environment.
- When India's Constitution was written, makers felt this need and added rules for changing (amending) it.
- They made the Constitution both strict and flexible.
- Some parts are difficult to change (rigid), while others are easier.

12.2 Method of Amendment

- Article 368 gives Parliament the power to amend (change) the Constitution.
- Parliament can change small matters through ordinary laws.
- For bigger changes, there are two special ways under Article 368:
 1. By 2/3rd majority of Parliament (First Method).
 2. By 2/3rd majority of Parliament + approval of half the State Legislatures (Second Method).

12.3 Amendment by 2/3rd Majority of Parliament – First Method

- Most parts of the Constitution can be changed by this method.
- In this method, only the Union Parliament (Lok Sabha + Rajya Sabha) is needed.
- To pass an amendment:
 - - More than half of all members must be present.

- - At least 2/3rd of those present and voting must agree.
- This method is partly rigid (needs a special majority) and partly flexible (only Parliament is involved).

12.4 Amendment by 2/3rd Majority Ratification by at least half Legislatures – Second Method

- Some special and important parts of the Constitution need a very strict (rigid) method for change.

- This method has two stages:

1. Stage 1:

- The amendment bill must be passed by both Houses of Parliament.
- It needs a majority of total membership and at least 2/3rd of members present and voting.

2. Stage 2:

- After Parliament passes it, the bill must also be approved (ratified) by at least half of the State Legislatures.
- Only after this approval, the President signs it, and it becomes part of the Constitution.

Provisions that require this strict method

- Election of the President.
- Powers of the Union government.
- Powers of State governments.
- Supreme Court of India.
- High Courts in States.
- Relationship between Union and States.
- Representation of States in Parliament.
- Procedure for amending the Constitution (Article 368 itself).

12.5 Additional Amendment – making the Two Houses of Parliament agree

- There are several amendments that can change the constitution but need to pass as special laws. These laws are not regular laws and follow Article 368. This includes:
 - Adding or creating new states and changing their areas, borders, or names.

- Rules about who can be a citizen.
- A law about how the two Houses of Parliament work.
- Special rights and pay for Members of Parliament.
- Rules about the language used in the Parliament.
- Appointing judges for the Supreme Court.
- Choosing the official language of India.

12.6 Main Features of the Amendment Method

- Part 20 of the Constitution talks about changing the Constitution. It has just one rule, called Article 368.
- The Union Parliament is mainly in charge of making changes to the Constitution. No changes can happen without Parliament's action and agreement. Only the Union Parliament can start the process of changing the Constitution.
- Three main ways to make changes:
 - Most rules can be changed by the Union Parliament passing a law with a majority of all members and a 2/3 majority of members present and voting in both Houses.
 - Ten special rules need a 2/3 majority in both Houses of Parliament and approval from at least half of the State Legislatures to be finalized.
 - Some rules can be changed by Parliament with a simple majority vote in both Houses.
- The President's signature is needed to turn a passed amendment bill into an official Amendment Act.
- State Legislatures cannot start the process of making amendments.
- All amendments can be checked by courts (like the Supreme Court or High Courts). If a court finds an amendment unfair or against the Constitution, it can be cancelled.
- Parliament can change any part of the Constitution. But the Supreme Court says Parliament cannot change the 'Basic Structure' of the Constitution.